widely anticipated that the bench of five judges allocated to hear the case would bury Narasu once and for all. The majority of judges struck down the practice of instant triple talaq, but they did so on different grounds – namely, that instant triple talaq was not integral to Islamic practice and was therefore not part of personal law at all.[20] The most robust statement about Narasu that would come from the bench was simply that 'it may be necessary to have a re-look' at this decision in a 'suitable case'.[21]

There have been some notable exceptions from this trend. In a decision upholding women's right to worship at the Sabarimala temple in Kerala, one judge of the Supreme Court noted that Narasu was incorrectly decided and detracted 'from the notion that no body of practices can claim supremacy over the Constitution and its vision of ensuring the sanctity of dignity, liberty and equality'.[22] In 1996, a judge of the Supreme Court observed that personal laws imposing an inferior status on women were 'anathema to equality' and must be consistent with the Constitution, including fundamental rights.[23] Another powerful criticism of the Narasu judgement came from the Kerala High Court: '[w]ith great respect to the eminent Judges who decided [the case] . . . we feel that the decision requires reconsideration.'[24] The high court also observed that there was no reason to insulate personal law from scrutiny in a secular republic, and to do so went against India's 'core constitutional values'.[25] These voices have been unable to persuade the Supreme Court to decisively overturn Narasu.

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Close to seven decades after the Bombay High Court's decision in Narasu, the judgement remains good law. This means that in the world's largest constitutional democracy, one category of law (uncodified personal law) is effectively above the Constitution itself. To be sure, the courts have often found ways of sidestepping the decision – by holding that a practice claimed to be personal law is not personal law at all, or that a practice within personal law has in fact been codified by statute. 'Minimalism' in decision-making has also played its part, with the courts sometimes ruling that they